

to the executors, as the testator could not be taken to have contemplated his own intestacy as to real estate.

Lord St. Leonards' Act. — However, by Lord St. Leonards' Act, 22 & 23 Vict. c. 35, s. 16 & 23, as to wills coming into operation since 13th August, 1859, the executor may sell or mortgage and sign a receipt for the money.

e. Charge of debts where the estate is subjected to various limitations. — Suppose a testator to charge his debts, and to devise the estate to *A. for life, with contingent remainders or other limitations*, which render it impossible that the implied power of sale can be executed by the devisees. This has occurred in several cases (*c*), and the *result [*469] appears to be that the Court, if it can possibly avoid it, will not construe the charge as a direction for a Chancery suit, but will assume that a power of sale for payment of the debts was given to some one, and that as it was not given to the devisees it must have been intended for the executors. In such a case the executors must be considered as having an *equitable* power of sale. The case in the Exchequer (*a*) directly decided that the executors have no power themselves to pass the *legal* estate. Where, in the case supposed, the executors take an implied equitable power of sale upon the face of the will, it is immaterial whether the devised estates do or not lapse, except that the legal estate will, as the event happens, be in the devisees or in the heir-at-law. If a conveyance cannot be obtained, recourse must be had to the Trustee Acts for the transfer of the legal estate.

Lord St. Leonards' Act. — However, Lord St. Leonards' Act, 22 & 23 Vict. c. 35, appears to apply to such a case, for though the devise is not to trustees as required by the 14th section, yet it is a case within the 16th section, where "the whole estate and interest" of the testator "has not become vested in any trustee or trustees;" and it is presumed that the 18th section was meant to except from the Act devises

(*c*) *Gosling v. Carter*, 1 Coll. 644; 592; 5 De G. M. & G. 272; *Sabin v. Eidsforth v. Armstead*, 2 K. & J. 333; *Heape*, 27 Beav. 553; *Greetham v. Wrigley v. Sykes*, 21 Beav. 337; *Colton*, 34 Beav. 615; *Hooper v. Strutton*, 12 W. R. 367.
Bolton v. Stannard, 4 Jur. N. S. 576; and see *Robinson v. Lowater*, 17 Beav. (a) *Doe v. Hughes*, 6 Exch. 223.